

Tentative Rulings and Resolution Review Hearings

April 14, 2025

Department 63

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Per Local Rule 5.13, telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. – Law & Motion

COSSUTO VS. ESTATE OF MICHAEL GARRETT, ET AL

Case Number: CVPO21-0196776

Tentative Ruling on Motions to Compel Further Discovery Responses: Defendants 3 JRM Corporation and Garrett Abzun Inc. move separately to compel Plaintiff Denise Cossuto to provide further responses to Special Interrogatories and Request for Production. Specifically, they seek further responses to Special Interrogatories Nos. 1-3 and 8-16 and to Requests for Production Nos. 2 and 4-6. Finally, Defendants seek monetary sanctions as well. The Court note that the Replies were filed one court day late, however, the Court exercises its discretion to consider the Replies.

Merits of Motion: A party responding to interrogatories must respond fully and the response must be as complete and straightforward as the information reasonably available to the responding party permits. CCP § 2030.220(a). The propounding party may move for an order compelling further responses if the responses are evasive or incomplete. CCP § 2030.300(a)(1). The interrogatories at issue requested the facts, witnesses and documents upon which Plaintiff was basing her contentions related to the Decedent's use of an airplane in relation to the moving Defendants. The Court has independently reviewed each responses and finds that they are not evasive or incomplete. Plaintiff, as the responding party, had limited knowledge of the facts, witnesses and documents and she appropriately responded with the information available to her at the time of her responses. Defendants themselves, or other parties may have additional information, but Plaintiff did not. Plaintiff could not have provided more specific information than that which was provided. The Court finds that further responses of the interrogatories are not warranted. Turning to the Requests for Production, they sought documents identified in the Special Interrogatories. As the responses to the Special Interrogatories did not identify any documents, none were required to be produced. The request to compel further responses to the Requests for Production at likewise not warranted under the circumstances.

Sanctions: The imposition of sanctions is mandatory against the party that unsuccessfully makes or opposes a motion to compel further responses unless the Court finds that the party subject to sanctions acted with a substantial justification or other circumstances make the imposition of sanctions unjust. CCP §§ 2030.300(d) and 2031.310(h). The Court finds that Defendants did not act with substantial justification and finds that there are no circumstances present that would make the imposition of sanctions unjust. The Court finds that the requested hourly rate of \$500 per hour is excessive for this community. The Court finds that an hourly rate of \$350 is reasonable and that the requested 7.4 hours is reasonable. Sanctions will be awarded in the amount of \$2,590.

The motion is **DENIED**. Sanctions are imposed against Defendants in the amount of \$2,590. Defendants provided proposed Orders that will be modified to reflect the Court's ruling.

JEWETT, ET AL. VS. CALIFORNIA DEPARTMENT OF HOUSING AND COMMUNITY DEVELOPMENT, ET AL.

Case Number: 24CV-0206422

Tentative Ruling on Order to Show Cause Re: Dismissal: An Order to Show Cause Re: Dismissal issued on February 28, 2025 to Petitioners, John Wesley Bowen and Steven Christopher Jewett, in pro per, for failure to appear on February 24, 2025 as ordered January 23, 2025; failure to appear on January 13, 2025 as ordered on November 13, 2025; and failure to provide notice to Respondents, as ordered November 13, 2025. The Court has received return mail from each Petitioner multiple times from the address listed on the Petition, indicating Petitioners likely do not have notice of today's proceedings. This matter is continued to **Monday, June 2, 2025 at 8:30am in Department 63** for further proceedings regarding the Order to Show Cause re: Dismissal. The clerk is directed to mail a copy of today's minutes and the Order to Show Cause re: Dismissal to each Petitioner at 4412 Hoopa Path, Redding, CA 96003. **No appearance is necessary on today's calendar.**

LOCKE, ET AL. VS. STERNBERG, ET AL.

Case Number: 23CV-0203172

Tentative Ruling on Application to Appear Pro Hac Vice: Boris Zhadanovskiy., an attorney admitted to practice law in the State of Florida, seeks admission pro hac vice in order to represent Plaintiffs Timothy Locke and Deborah Metzger. California Rule of Court, Rule 9.40 provides the procedural requirements for a pro hac vice application and requires a verified application with the following information:

- (1) the applicant's residence and office address;
- (2) the courts to which the applicant has been admitted to practice and the dates of admission;
- (3) that the applicant is a member in good standing in those courts;
- (4) that the applicant is not currently suspended or disbarred in any court;
- (5) the title of court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and
- (6) the name, address, and telephone number of the active member of the State Bar of California who is attorney of record.

CRC 9.40(d).

Rule 9.40(c)(1) also requires service of the application on all parties that have appeared and on the State Bar. The State Bar also requires payment of a fee. The notice requirements of CCP § 1005 apply and proof of service in accordance with CCP § 1013a is required.

The Application is verified and contains all the information required by Rule 9.40(d). However, the Application was filed on March 26, 2025 for a hearing on April 14, 2025. This does not comply with CCP § 1005. Additionally, there is no proof of service indicating when and how all the parties who have appeared in the matter were served. The Court notes that the County of Shasta was recently added as a defendant and has sought an extension of time.

The Application is **DENIED** without prejudice. Plaintiffs submitted a proposed Order that will be modified to reflect the Court's ruling. In the alternative, Plaintiffs may appear and request a continuance of the hearing in order to provide proper notice.

MAE VS. WILLOW SPRINGS CA, LLC, ET AL.

Case Number: 24CV-0205188

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued February 27, 2025, to all parties and counsel for failure to timely file a Mandatory Settlement Conference Statement as required by Rule of Court 3.1380(c). In light of the party's stipulation to continue trial, mandatory settlement conference, and pre-trial dates filed on March 5, 2025, the Order to Show Cause is **DISCHARGED**. **No appearance is necessary on today's calendar.**

MASSETT VS. AMERICAN AUTOMOBILE ASSOCIATION, ET AL.

Case Number: 24CV-0206073

Tentative Ruling on Motion for Reconsideration: Plaintiff Stacey Massett moves for reconsideration of one or more rulings made on March 3, 2025 by the Honorable Benjamin L. Hanna. CCP § 1008(a) requires the Application be made to the same judge who ruled on the underlying motion. Judge Hanna is not hearing the calendar today. The Court notes that a review hearing is set in this matter on May 19, 2025. This matter is continued to **Monday, May 19, 2025 at 8:30 a.m. in Department 63** for hearing on the motion. **No appearance is necessary on today's calendar.**

SEEKINS VS. VICTORY POWDER COATING, LLC

Case Number: 24CV-0204815

Tentative Ruling on Motion for Summary Adjudication: Defendant Victory Powder Coating, LLC moves for summary adjudication on the Third Amended Complaint filed by Plaintiff Brian Seekins. Plaintiff opposed the motion and raised a notice issue.

If made in the alternative, a motion for summary adjudication may make reference to and depend on the same evidence submitted in support of the summary judgment motion. If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.

CRC 3.1350(b)

The Notice of Motion here reads that Defendant "will move the Court for Summary Adjudication of Plaintiff's claims set forth in his Third Amended Complaint." The specific causes of action and issues are not specifically stated in the Notice of Motion. The Notice of Motion is not compliant with CRC 3.1350(b).

The Motion for Summary Adjudication is **DENIED** without prejudice for insufficient notice and because it does not comply with CRC 3.1350(b). Defendant provided a proposed Order that will be modified to reflect the Court's ruling.

9:00 a.m. – Review Hearings

ARELLANO VS. USA WASTE OF CALIFORNIA, INC.

Case Number: 22CV-0200801

This matter is on calendar for review regarding status of removal to Federal Court. The matter was removed on December 9, 2022. As it does not appear that this matter will be remanded, this matter is removed from the Court's control due to the removal to Federal Court. Any future hearing dates are vacated and no further appearances will be required. **No appearance is necessary on today's calendar.**

BONSEY VS. DIGNITY HEALTH, ET AL.

Case Number: 24CV-0205081

This matter is on calendar for review regarding status of service, and if appropriate, trial setting. The Court notes that Plaintiff has still not filed a Proof of Service of Summons as to Defendant Ben Lee. M.D. The Court notes that the Complaint was filed on May 23, 2024. **An appearance is necessary on today's calendar. Absent good cause being presented, the Court intends to issue an Order to Show Cause Re: Monetary Sanctions to Plaintiff and Counsel for failure to timely serve the Complaint per CRC 3.110(b).**

CHRISTENSEN VS. BROOKSHIRE, ET AL.

Case Number: 24CV-0204975

This matter is on calendar for review regarding status of the case and trial setting. The Court notes that the matter is at issue. The Court designates this matter as a Plan II case and intends on setting the matter for trial no later than November 18, 2025. Neither party has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

INTERSIMONE VS. PERKINS

Case Number: 24CVG-00531

This matter is on calendar for review regarding status of dismissal. On April 1, 2025, Plaintiff's counsel informed the Court that she was seeking written permission from her client to dismiss the matter. The matter has not been dismissed. **An appearance is necessary on today's calendar. Absent good cause being presented, the Court intends to issue an Order to Show Cause Re: Dismissal for failure to timely serve the Complaint per CRC 3.110(b).**

JEWETT, ET AL. VS. CALIFORNIA DEPARTMENT OF HOUSING AND COMMUNITY DEVELOPMENT, ET AL.

Case Number: 24CV-0206422

This matter is on calendar for status. An Order to Show Cause Re: Dismissal was on this morning's Law & Motion calendar and the hearing was continued to June 2, 2025. The review hearing is continued to **Monday, June 2, 2025 at 9:00 a.m. in Department 63.** **No appearance is necessary on today's calendar.**

LVNV FUNDING, LLC VS. MEYER, JR

Case Number: 23CVG-01141

This matter is on calendar for review regarding status of default. An Amended Proof of Service of Summons was filed on January 17, 2025 reflecting personal service on November 25, 2023. Plaintiff has not submitted a Request for Entry of Default since filing the Amended Proof of Service. **An appearance is necessary on today's calendar. Absent good cause being presented, the Court intends to issue an Order to Show Cause Re: Monetary Sanctions to Plaintiff and Counsel for failure to timely enter default and obtain a default judgment per CRC 3.740(f).**

PIERCY, ET AL. VS. MCINTOSH, ET AL.

Case Number: 24CV-0204617

This matter is on calendar for review regarding status of service. Proof of Service of Summons was filed on April 4, 2025. The time for filing a responsive pleading has not passed. The matter is continued to **Monday, June 2, 2025 at 9:00 a.m. in Department 63** for review regarding status of responsive pleading or default. The Court expects that Plaintiff will get the matter at issue prior to the next hearing. **No appearance is necessary on today's calendar.**

THE ESTATE OF JIMMIE CHARLES SNEED VS. PRIME HEALTHCARE SERVICES SHASTA, LLC

Case Number: 22CV-0199785

This matter is on calendar for review regarding status of the case. On February 10, 2025, Julie Anna Deschenes was stricken from the First Amended Complaint as she could not proceed in the matter. Plaintiff filed a Case Management Conference Statement that does not address the issue of there being no Plaintiff identified to prosecute the matter. **An appearance is necessary on today's calendar.**

WADDELL VS. GRADY, MD

Case Number: 24CV-0206272

This matter is on calendar for trial setting. The Court notes that the matter is at issue. The Court designates this matter as a Plan II case and intends to set the matter for trial no later than April 21, 2026. Plaintiff has posted jury fees but Defendant has not. Defendant is granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

WOODWARD VS. FELTSEN, ET AL.

Case Number: 23CV-0202971

This matter is on calendar for trial setting. The Court notes that the matter is at issue. The Court designates this matter as a Plan III case and intends to set the matter for trial no later than August 12, 2025. Defendants have posted jury fees but Plaintiff has not. Plaintiff is granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**